

Sample Vendor Agreement Excerpt: Indemnification

Section 9. Indemnification.

Each party (the 'Indemnifying Party') shall defend, indemnify, and hold harmless the other party from and against any third-party claims, damages, and reasonable attorneys' fees arising out of the Indemnifying Party's breach of this Agreement, gross negligence, or willful misconduct.

The Indemnifying Party's duty to defend shall apply as claims are asserted, and shall not be contingent upon a final adjudication of liability.

Except for claims arising from a breach of confidentiality or data protection obligations, the Indemnifying Party's aggregate liability under this Section shall not exceed the total fees paid under this Agreement in the twelve (12) months preceding the claim.